

Contentious Chamber

Decision on the merits 137/2023 of September 29, 2023

File number: DOS-2020-04511

Subject: Complaint regarding the absence of a subcontracting contract (Article 28.3 of the GDPR) and the lack of sufficient information by a public authority (Article 14 of the GDPR)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Romain Robert and Christophe Boeraeve, members;
Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";
Having regard to the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter LCA);
Having regard to the internal rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;
Having regard to the documents in the file;
Has made the following decision regarding:

The complainant:

Mr. X, hereinafter referred to as "the complainant";

The defendants:

The municipality Y1, hereinafter referred to as "the first defendant";

The company Y2, represented by Master Louis Leurquin, lawyer, whose office is located at Avenue Brugmann, 435 in 1180 Brussels (Uccle), hereinafter referred to as "the second defendant";

Hereinafter collectively referred to as "the defendants".

Decision on the merits 137/2023 – 2/16

I. Facts and procedure

1. On September 4, 2020, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendants.
2. The subject of his complaint concerns, on the one hand, the absence of a subcontracting contract between the first and second defendants regarding the processing of the complainant's data and, on the other hand, the manner in which the complainant's data was processed in the context of the establishment and collection by the first defendant of a parking fee owed by the complainant.
3. The facts underlying the complaint can be summarized as follows.
4. The complainant states that he received a fee from the first defendant for parking on May 20, 2020, at Place (...). This parking fee was sent to his home and included his name, address, and the license plate number of his vehicle.
5. On July 6, 2020, the complainant contacted the Tax Service of the first defendant to obtain proof of the parking violation attributed to him. In response, the complainant was sent several photographs of his vehicle. He then inquired with the Tax Service of the first defendant about how his personal data was processed in the context of the establishment and collection of the fee that was being demanded from him.
6. Informed in response that the first defendant was using the services of third parties, including the second defendant, the complainant requested to obtain the agreement concluded with the latter. It was, as acknowledged by the first defendant, revealed that the subcontracting contract that was supposed to bind it to the second defendant did not exist at the time of the events concerning the complainant.
7. The Contentious Chamber notes here that on July 27, 2020, a "Personal Data Processing Agreement" (PDPA) was signed between the defendants. Article 2 of this PDPA defines the role of each party. The second defendant is described as an IT engineering company that develops and

markets software, manages IT infrastructures, and provides its expertise to both public and private clients. In the context of its activities, it may be required to process personal data belonging to its client, such as the first defendant in this case, particularly in the context of its installation, support, and/or maintenance and hosting activities. The contract continues by stating that in the context of the processing carried out, the second defendant...

Decision on the merits 137/2023 – 3/16

acts as a subcontractor while its client, namely the first defendant in this case, acts as the data controller.

8.

On October 23, 2020, the complaint is declared admissible by the First Line Service (SPL) of the Data Protection Authority (APD) based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

9.

On November 20, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation is transmitted to the Inspection Service (SI).

10.

On May 11, 2021, the investigation by the SI is concluded, the report is attached to the file, and it is transmitted by the Inspector General to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

11.

This inspection report makes the following findings:

a. Violation of Article 28.3 of the GDPR by the first defendant: the SI establishes that the subcontracting contract between the first defendant as the data controller and the second defendant as the subcontractor was concluded on July 27, 2020. The SI therefore notes that at the time of the reported facts and the processing of the complainant's data in the context of establishing and collecting the parking fee on May 20, 2020, such a contract did not exist, in violation of Article 28.3 of the GDPR. The SI adds that the retroactive clause contained in the said subcontracting contract cannot prejudice the rights of third parties, particularly those of the complainant.

b. Violation of Articles 12.1 and 14 of the GDPR by the first defendant: the SI establishes that the exemption from information provided for in Article 14.5.c of the GDPR invoked by the first defendant cannot be retained in this case. In support of the Guidelines on Transparency from the European Data Protection Board (EDPB), the SI concludes that the texts invoked by the first defendant, while they establish the lawfulness of the processing, do not impose an obligation on her to obtain (or receive communication of) the data she processes in the context of collecting the fee in question and, above all, do not contain any

Decision on the merits 137/2023 – 4/16

appropriate measures aimed at protecting the legitimate interests of the person concerned as required by Article 14.5.c) of the GDPR in order to be mobilized.

The SI notes that the first defendant also invokes the deliberation AF 23/2013 of July 25, 2013, of the Federal Authority Sectoral Committee (CSAF) of the Commission for the Protection of Privacy (CPVP) concerning a unique authorization and modifying, with respect to private concessionaires of the Brussels municipalities, the autonomous municipal rules of Brussels and the Agency for Parking of the Brussels-Capital Region, the deliberation AF 12/2009 concerning unique authorization for access to the DIV directory for the purpose of identifying individuals who are debtors due to the use of a vehicle, which it maintains is still valid in accordance with Article 111 of the LCA. The SI notes that this deliberation specifically requires that information be provided to the person concerned via the website of the data controller as well as on payment requests. The SI observes that such information is neither provided on the website of the first defendant nor on the payment requests sent (2nd reminder). The SI also emphasizes that the fact that the first defendant is authorized to access the DIV (Vehicle Registration Directorate - vehicle directory) does not exempt it from the obligation to provide information.

12.

On July 9, 2021, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the

LCA, that the case may be examined on the merits.

13.

On the same date, the parties are informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for the receipt of the defendants' response conclusions has been set for September 6, 2021, that for the complainant's reply conclusions for September 28, 2021, and that for the defendants' reply conclusions for October 20, 2021.

14.

Also in this letter of July 9, 2021, the Contentious Chamber specifies that the first defendant is invited to present its arguments regarding the findings made against it by the SI. Furthermore, it invites the first defendant to present its arguments concerning compliance with Articles 5.2. and 24 of the GDPR, given that a proven breach of either one or the other

3 The Commission for the Protection of Privacy (CPVP) was the Belgian data protection authority within the meaning of Article 28 of Directive 95/46/EC. The Data Protection Authority (APD) succeeded it on May 25, 2018, in execution of Article 3 of the LCA.

4 Article 36bis of the LVP provided that any electronic communication of personal data by a federal public service or by a public body with legal personality that falls under federal authority requires a principle authorization from the CSAF unless the communication has already been subject to a principle authorization from another sectoral committee established within the CPVP. The mission of the CSAF is to verify whether the communication complies with legal and regulatory provisions.

Decision on the merits 137/2023 – 5/16

of Articles 28, 12.1 and/or 14 of the GDPR retained by the SI may consequently constitute a breach of these provisions (Articles 5.2 and 24 of the GDPR) enshrining the principle of accountability.

15.

Following the complaint filed by the complainant (which also denounces a potential breach of obligations arising from the GDPR by the second defendant – see point 1), the Contentious Chamber also invites the latter to present its arguments regarding Article 28 of the GDPR and the obligation to frame its relationship with the first defendant through a subcontracting contract compliant with Article 28.3 of the GDPR.

16.

On September 2, 2021, the Contentious Chamber received the response conclusions from the first defendant:

-

Regarding the allegation of a violation of Article 28.3 of the GDPR, the first defendant does not deny that there was indeed neither a contract nor any other legal act binding it to the second defendant at the time of the events that led to the complaint. However, the first defendant emphasizes that this contract – the signing of which had not been deemed a priority, notably in the absence of a high risk for the data subjects and considering the context of the COVID-19 pandemic which required prioritization – was concluded on July 27, 2020, and that the situation is now regularized, including for the past, given the retroactive clause to May 25, 2018, provided for in Article 3 of said contract (Article 3).

-

Regarding the allegation of a violation of Articles 12.1 and 14 of the GDPR, the first defendant states, relying on the SI's conclusions on this point, that it acknowledges that Article 14.5.c) of the GDPR would not apply and indicates that it has modified its website by adding text containing the information elements required by Article 14 of the GDPR and adapted the payment request letters in the context of parking fees by adding an informative clause.

17.

On September 3, 2021, the second defendant notified the Contentious Chamber that it refers to and adheres to the arguments developed by the first defendant in its response conclusions of September 2, 2021 (point 16), which conclusions may be considered as submitted in its name and on its behalf as well.

18.

On September 4, 2021, the Contentious Chamber received the reply conclusions from the complainant:

-

The complainant welcomes the fact that the first defendant acknowledges the breaches attributed to it by the SI while questioning its good faith when it invokes what he considers to be "too easy an excuse" of the COVID-19 virus epidemic to explain its delay in signing a subcontracting contract. He points out in this regard that the GDPR has been in force since May 25, 2016, even before the public contract was awarded by the first defendant to the second defendant at the end of 2016.

-

The complainant also emphasizes that the first defendant minimizes the personal data it communicates to the second defendant. Only the license plate of the offenders would be transmitted to it, while the SI's report mentions that other personal data concerning him (such as photographs of his vehicle) are also communicated. Generally, the complainant denounces the lack of exemplary behavior and transparency of the first defendant as a public administration.

-

Finally, the complainant wishes for the damages he has suffered due to the non-respect of his personal data to be recognized, both on a moral and financial level, estimating his loss of earnings at €1,500.00 ex aequo et bono in light of the time and energy devoted to this matter.

19.

On September 30, 2021, the Contentious Chamber received the reply conclusions from the first defendant. Regarding the compensation claimed by the complainant for the harm suffered, the first defendant argues that the complainant's data were not used for purposes not provided for by law and that he could not have suffered harm due to their abusive use. It also emphasizes that public authorities are exempt from administrative fines.

20. On September 30, the Contentious Chamber also received a final reaction from the complainant. This reaction is submitted late, as the complainant has already had the opportunity to conclude (point 18) and the final word belongs to the defendants. The complainant insists in particular on the fact that the fee could only be established through the unlawful communication of data concerning him, which, from his point of view, invalidates the fee as such. He further recalls that while public authorities are exempt from administrative fines, non-monetary administrative sanctions can be imposed on them as well as criminal sanctions. The complainant finally reiterates his request for compensation.

II. Reasoning

II.1. Regarding the breach of Article 28.3 of the GDPR by the first and second defendants

21.

Article 28.1 of the GDPR provides that when processing is to be carried out on behalf of a data controller, the latter shall only engage processors providing sufficient guarantees regarding the implementation of technical and

Decision on the Merits 137/2023 – 7/16

appropriate organizational measures to ensure that the processing meets the requirements of the GDPR and guarantees the protection of the rights of the data subject.

22.

Pursuant to Article 28.3 of the GDPR, such processing must be governed by a contract or another legal act under Union law or the law of a Member State, which binds the processor to the controller, defines the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects as well as the obligations and rights of the controller. This contract or other legal act must also provide for the series of obligations listed in letters a) to h) of Article 28.3 of the GDPR to be borne by the processor.

23.

In this case, the Contentious Chamber qualifies the first defendant as a "controller" within the meaning of Article 4.7 of the GDPR. It is the entity that determines the purposes and means of the contested processing (namely, the processing of personal data relating to the complainant for the purpose of establishing and collecting a parking fee), in the context of exercising a competence that has been

legally entrusted to it. This qualification is not contested by the defendants.

24.

The Contentious Chamber qualifies the second defendant as a "processor" within the meaning of Article 4.8 of the GDPR in that it acts on the instructions of the first defendant. This qualification is also not contested by the defendants.

25.

The Contentious Chamber decides that both the first and second defendants were required to conclude a subcontracting agreement or to bind themselves by a legally binding act regarding the exercise of the subcontracting mission they had established between themselves, in execution of Article 28.3 of the GDPR.

26.

In this regard, the Contentious Chamber adopts the position of the EDPB⁵ that "given that the regulation establishes a clear obligation to conclude a written contract, when no other relevant legal act is in force, its absence constitutes a violation of the GDPR. Both the controller and the processor are responsible for ensuring that a contract or another legal act governs the processing⁶. Subject to the provisions of Article 83 of the GDPR, the competent supervisory authority will be able to

5 European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, version 2.0 of July 7, 2021

https://edpb.europa.eu/system/files/2022-02/eppb_guidelines_202007_controllerprocessor_final_fr.pdf

6 It is the Contentious Chamber that emphasizes. Article 28, paragraph 3, does not apply solely to controllers. When only the processor is covered by the territorial scope of the GDPR (Article 3), the obligation is directly applicable only to the processor. See also in this sense the Guidelines 3/2018 of the European Data Protection Board (EDPB) regarding the territorial scope of the GDPR, p. 12.

https://edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_3_2018_territorial_scope_fr.pdf.

Decision on the merits 137/2023 – 8/16

to impose an administrative fine on both the data controller and the processor, taking into account the specific circumstances of each situation.

27.

In other words, the obligation to conclude a contract or to bind oneself by a legally binding act weighs on both the data controller (here the first defendant) and the processor (here the second defendant) and not solely on the data controller. This is particularly important when, as is the case here, a processor offers its specialized services to a large number of distinct data controllers. It would not be compliant with the GDPR (nor with the reality on the ground) to consider that the initiative to conclude the contract (and its proposed content) should come solely from the data controller.

28.

In this case, the first and second defendants do not contest that the subcontracting contract that was supposed to bind them did not exist at the time of the reported facts. This contract was concluded on July 27, 2020, which is a date subsequent to these facts and the subsequent data processing that, for the record, originated from a parking incident on May 20, 2020. In the explanations provided to attempt to justify this late signing (point 16), the first defendant (followed by the second defendant – point 17) indicates that at the time of the public procurement award to the second defendant by a resolution at the end of 2016, the GDPR did not yet exist. On this point, the Contentious Chamber reminds the defendants that, in reality, the GDPR had been in force since May 25, 2016 (Article 99.1 of the GDPR), which means that it had already been in effect for more than 6 months at the time of the procurement award resolution mentioned by the first defendant. Consequently, from the moment the public procurement was awarded by the first defendant to the second defendant, the latter were required to comply with the GDPR and, therefore, to sign as soon as possible and in any case no later than May 24, 2018, a subcontracting contract compliant with Article 28.3 of the GDPR. The legislator had indeed expressly provided for a transitional period of 2 years to allow for compliance with the GDPR, including with respect to situations that predated the application of the GDPR but would continue beyond it.

29.

With the SI (point 10), the Contentious Chamber is of the opinion that the retroactivity clause provided for in the contract of July 27, 2020, is not capable of remedying the absence of a contract at the time of the facts. If such retroactivity were to be admitted, it would de facto allow for circumventing the temporal application of the obligation of Article 28.3 of the GDPR, which weighs, as developed in points 26 and 27 above, on both the data controller and the processor. However, as has been explained in point 28, the GDPR itself provided for a period of 2 years separating its entry into force from its application for a gradual compliance by all concerned entities (Article 99 of the GDPR).

7 It is the Contentious Chamber that emphasizes this.

Decision on the merits 137/2023 – 9/16

The obligation to conclude such a contract is also intended to clearly allocate the responsibilities of each of the defendants in their respective capacities as data controller on the one hand and processor on the other. As highlighted in recital 79 of the GDPR, this obligation also aims to ensure the protection of the rights and freedoms of the data subjects whose data will be processed within the framework of the relationship that the data controller (here the first defendant) and the processor (here the second defendant) choose to create between themselves. This lack of protection—while required by the GDPR—cannot be covered by a retroactive contractual clause agreed upon solely by the defendants, disregarding the rights of the data subjects—who are not parties to the contract—enshrined by a norm of European rank moreover.

30. In light of the above, the Contentious Chamber concludes that both the first and the second defendants have committed a breach of Article 28.3 of the GDPR. For all practical purposes, the Contentious Chamber specifies that it is authorized to find a breach of this provision by the second defendant notwithstanding the absence of a breach pointed out in respect of this latter by the SI, in execution of its own competencies. The second defendant implicated by the complaint filed (point 1) has also been invited to defend itself regarding this breach in accordance with the principle of adversarial proceedings (point 15) and does not deny the absence of a contract at the time of the facts.

31.

The defendants also argue that in any case, they complied with the obligations arising from the Law of December 8, 1992, on the protection of privacy with regard to data processing (LVP) previously applicable (Article 16 concerning the obligations of the processor) and that given other urgencies, particularly related to the COVID-19 virus pandemic, compliance with the GDPR was not perceived as a priority since 2018 in light of the low risks incurred by the liable party in the context concerned. The defendants also assert that the rights of the complainant have always been respected, even before the conclusion of the contract on July 27, 2020, and that the data concerning him has not been used for purposes other than those related to the parking fee.

8 The LCA does not require the Contentious Chamber to resort to the Inspection Service. Indeed, the Contentious Chamber sovereignly decides whether, following the filing of a complaint, an investigation is necessary or not (Article 63, 2° of the LCA and Article 94, 1° of the LCA). In this sense, Article 94, 3° LCA explicitly provides that once seized, the Contentious Chamber can handle the complaint without resorting to the Inspection Service. It thus has a discretionary power regarding the complaint that is independent of the inspection (Market Court (19th ch. A), December 7, 2022, 2022/AR/560 and 2022/AR/564; Market Court (19th ch. A), December 7, 2022, 2022/AR/556).

9 It should be noted that the obligations of the processor were very limited compared to the requirements set forth by Article 28 of the GDPR. Article 16 of the LVP indeed limited itself to providing that the processor could only act on the instructions of the data controller and had to provide sufficient guarantees to ensure the security of the processing entrusted to it in subcontracting.

Decision on the Merits 137/2023 – 10/16

32.

For the Contentious Chamber, the circumstances invoked by the defendants - even if proven - do not eliminate the existence of a breach on their part. They could at most be taken into account by the Contentious Chamber in assessing the appropriate sanction in light of all the circumstances of the case.

II.2. Regarding the breach of Article 12.1 and 14 of the GDPR by the first defendant

33. The Contentious Chamber acknowledges that the first defendant has now provided information reflecting the required elements in execution of Article 14 of the GDPR for the data subjects on its website, on the one hand, and has also committed to providing information to the data subjects when sending requests for payment of fees, on the other hand.

34. Nevertheless, the Contentious Chamber concludes that in the past, the first defendant was guilty of a breach of Articles 12.1 and 14 of the GDPR by failing to provide information compliant with the attention of the data subjects. The Contentious Chamber shares in this regard the analysis of the SI which dismisses the applicability of Article 14.5.c) of the GDPR.

35. Under this Article 14.5.c), the data controller is exempt from its obligation to provide information when and to the extent that "the obtaining or communication of the information is expressly provided for by Union law or the law of the Member State to which the data controller is subject and which provides for appropriate measures to protect the legitimate interests of the data subject."

36. The Contentious Chamber notes a difference in language between the French version and, for example, the Dutch and English versions of this provision. Indeed, while the French version of Article 14.5.c) of the GDPR mentions "when and to the extent that the obtaining or communication of the information is expressly provided for by Union law or the law of the Member State," the Dutch and English versions of the text use the following terms respectively: "wanneer en voor zover het verkrijgen of verstrekken van de gegevens uitdrukkelijk is voorgeschreven bij Unierecht of lidstaatachtig recht" and "where and insofar obtaining or disclosure is expressly laid down by Union or Member State law." (read: obtaining or disclosure of data in accordance with the terms of Recital 62). The Contentious Chamber is of the opinion that it is indeed the obtaining and communication of data that must be provided for by national law (or, where applicable, by European Union law), notwithstanding the terms of the French version of Article 14.5.c) of the GDPR.

37.

What is provided for in Article 14.5.c) of the GDPR constitutes an exception to the right to information. In the absence of being informed that data processing concerning them is being carried out, the data subject is deprived of information that is, in principle, spontaneously provided by the data controller and that facilitates the exercise of their other rights of which they are otherwise informed of the existence and modalities of exercise through this means (Article 13.2 b), c) and d) and 14.2 c), d) and e) of the GDPR).

38. This exemption must be interpreted restrictively as it constitutes an exception to the obligation to provide information provided for by the fundamental right to data protection and to the corollary obligation to provide information that weighs on the data controller. It also deprives, as already mentioned, the data subject of information on the existence and modalities of exercising their other rights, which are not, for their part, subject to the same exception "in the case of obtaining or communication expressly provided for by law." For example, the right of access (Article 15 of the GDPR) - which in turn opens the way to the exercise of other rights such as the right to rectification, opposition, or erasure - does not know this exception (Article 15.4. of the GDPR).

39. The rationale of this exception in Article 14.5.c) of the GDPR is based on the fact that national legislation would require the obtaining or communication of the said data. It is therefore important that this legislation is particularly clear and complies with the qualities that any legislation in the field of data protection must have, and that this obtaining/communication is binding on the data controller, which it must be able to demonstrate. The said legislation must also provide for appropriate measures to guarantee the legitimate interests of the data subject.

40. The Contentious Chamber adds that finally, the obligation to obtain or communicate the said data must, in order to trigger the exception of Article 14.5.c) of the GDPR, logically cover all the data that would have been processed by the data controller invoking the exemption from information.

41.

The report of the SI notes that the first defendant invokes the following texts:

a. Article 6 of the Royal Decree of July 20, 2001, concerning the registration of vehicles, which provides that the investigation and prosecution of crimes, offenses, and contraventions are the purposes for which personal data from the DIV (Vehicle Registration Directorate) registry may be

processed.

The Contentious Chamber notes that this provision specifies the purposes of the DIV, whose consultation is authorized for the benefit of the first defendant for these purposes, including that of establishing the fee.

b. The law of February 22, 1965, allowing municipalities to establish parking fees applicable to motor vehicles.

Decision on the merits 137/2023 – 12/16

Here too, the Contentious Chamber notes that this is a text that allows the first defendant to establish the parking fee. Upon examination of the text, the Contentious Chamber observes that Article 2 of the legislation provides that "for the collection of fees, taxes, or parking charges referred to in Article 1, cities and municipalities and their concessionaires and autonomous municipal managements are authorized to request the identity of the holder of the registration number from the authority responsible for vehicle registration, in accordance with the law on the protection of privacy." The text thus provides the right for municipalities such as the first defendant to consult the DIV for the purpose of establishing the fee.

c. The parking fee regulation related to the municipal parking policy voted by the municipal council on [...] which allows for the establishment of parking fees when a vehicle does not comply with the relevant legislation.

Upon analysis of this text communicated by the first defendant to the SI, the Contentious Chamber notes (i) that it organizes the modalities under which parking is regulated, subdivided (paid zone, blue zone, etc.) and according to which tariff, (ii) that it details the modalities for amicable recovery and amicable claims as well as (iii) the modalities for forced recovery and appeals against the forced recovery procedure. The text further details the existing exemption cards.

The Contentious Chamber, however, does not identify any provision that specifies what data the first defendant would be required to obtain in the context of establishing and collecting a parking fee.

d. The ordinance of January 22, 2009 – Chapter VII – on parking fees and the enforcement of parking regulations. The text organizes the parking policy in the Brussels-Capital region, creates the Parking Agency, sets the amounts of the fees, and addresses the issue of control and collection of these fees as well as their cost for municipalities, etc.

Here too, the Contentious Chamber does not identify any provision regarding the mandatory obtaining/communication of data that the first defendant could invoke to justify the information exemption it claimed.

10 Read the Ordinance of January 22, 2009, on the organization of parking policy and the creation of the Parking Agency of the Brussels-Capital Region, M.B., January 30, 2009.

Decision on the merits 137/2023 – 13/16

42.

In support of the above, the Contentious Chamber concludes that while it is understandable that the first defendant indeed needs certain data to establish and collect a parking fee (and is authorized to consult a source such as the DIV for this purpose), the texts it invokes in support of its authority do not provide for the mandatory obtaining or communication of the data it processed in this case (including photographs). As the SI further points out, none of these texts additionally provide for appropriate measures intended to protect the interests of the individuals concerned in this context where no information would therefore be provided to them in the proactive sense that the GDPR gives to this obligation. Consequently, the Contentious Chamber finds that the conditions for the application of Article 14.5.c) of the GDPR are not met and that the first defendant was therefore not authorized to invoke this exception.

43. In this regard, the deliberation of the CSAF to which the first defendant refers required informing the individuals concerned, which the first defendant failed to do.

44. Finally, for cases where the data controller would be entitled to rely on Article 14.5.c of the GDPR, the Contentious Chamber recalls, as emphasized by the EDPB in its aforementioned Guidelines on Transparency, that this exemption nonetheless requires that "the data controller should clearly inform the individuals concerned that it obtains or communicates personal data in accordance with the

relevant law, unless prevented from doing so by a legal prohibition. This provision is consistent with Recital 41 of the GDPR, which states that a legal basis or legislative measure should be clear and precise and that its application should be predictable for the subjects of law, in accordance with the case law of the Court of Justice of the European Union and the European Court of Human Rights." This obligation aligns with the one that the data controller has to identify - in execution of Articles 13.1.c) and 14.1.c) of the GDPR - the legal bases for its processing and this, prior to the operationalization of those processes. It is not sufficient in this regard to indicate that data processing will occur in execution of a legal obligation or to simply refer to the application of Article 6.1.c) of the GDPR. It is the responsibility of the data controller to identify the relevant legislations that underpin the processing it carries out.

45. In conclusion, the Contentious Chamber finds a breach of Article 14 of the GDPR on the part of the first defendant combined with a breach of Article 12.1 of the GDPR. Indeed, by failing to provide the information elements listed in Article 14 of the GDPR to the individuals concerned, the first defendant also fails to comply with this provision which requires that the data controller take appropriate measures to provide all information referred to in Articles 13 and 14 in a concise, transparent, comprehensible, and easily accessible manner, in clear and plain language.

Decision on the merits 137/2023 – 14/16

II.3. Regarding corrective measures and sanctions

46. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a non-suit;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the concerned person to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or international organization;
- 15° refer the case to the Public Prosecutor of the King of Brussels, who will inform it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

47.

It is important to contextualize the breaches for which each of the defendants is responsible in order to identify the most appropriate corrective measures and/or sanctions.

48. The Contentious Chamber wishes to clarify that it is sovereignly responsible as an independent administrative authority - in accordance with the relevant articles of the GDPR and the LCA - to determine the appropriate corrective measure(s) and/or sanction(s) in light of all the circumstances of the case. Thus, it is not for the complainant to request the Contentious Chamber to order a specific corrective measure or sanction (exemplary) and even less so to take measures that are not among those that the Contentious Chamber is authorized to impose. If, notwithstanding the above, the complainant were to make such a request, it is not the responsibility of the Contentious Chamber to justify why it would not accept one or another request as formulated by the complainant. These considerations leave intact the obligation for the Contentious Chamber to justify the choice of measure and/or sanction that it deems appropriate to impose on the party or parties involved.

49. In this regard, the Contentious Chamber specifies that it is not competent to grant damages or compensation for any potential harm suffered nor to invalidate a parking fee. Such powers are neither provided for by the aforementioned Article 58 of the GDPR nor by the above-mentioned Article 100.1

of the LCA. The imposition of such measures is reserved, where applicable, to the competent courts and tribunals.

50. In light of the breaches identified concerning the first defendant under Articles 28.3 (point 30), 14, and 12.1 of the GDPR (point 45) in its capacity as a public authority, the Contentious Chamber decides that a reprimand constitutes the appropriate sanction.

51.

The Contentious Chamber further notes that it follows from the acknowledgment of the facts by the first defendant, the signing of a subcontract in July 2020, and the commitments made in terms of informing the concerned individuals, that the first defendant has recognized the breaches reported under Articles 28.3, 14, and 12.1 of the GDPR already cited.

52.

Regarding the second defendant, the Contentious Chamber also decides to issue a reprimand in light of the breach identified under Article 28.3 of the GDPR (point 30) on its part as well. In light of all the circumstances of the case, this measure constitutes, in the eyes of the Contentious Chamber, the appropriate sanction for the identified past breach.

III. Publication of the decision

53. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the DPA. However, it is not necessary for this purpose that the identifying data of the parties be directly mentioned.

Decision on the Merits 137/2023 – 16/16

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority (DPA) as the defendant party.

Such an appeal may be filed by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS

President of the Contentious Chamber

11 The application must include, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, domicile and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

12 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.

FOR THESE REASONS,

the Contentious Chamber of the Data Protection Authority decides, after deliberation:

-

Pursuant to Article 100.5° of the LCA, to issue a reprimand to the first defendant for violations of Articles 28.3, 14, and 12.1 of the GDPR.

-

Pursuant to Article 100.5° of the LCA, to issue a reprimand to the second defendant for the violation of Article 28.3 of the GDPR.